

Water Supply and Sanitation Act, 2022

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Drinking Water and Sanitation Act, 2079".
(2) This Act shall commence on the thirty-first day after the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "License" means a license pursuant to Section 9.
 - (b) "Licensee Institution" means an organized institution providing drinking water and sanitation services, and said term also denotes a service provider who has obtained a license under this Act to provide drinking water and sanitation services, to survey, construct, operate, and manage projects or service systems, and to use or cause to be used water sources for public, institutional, commercial, and industrial purposes.
 - (c) "Commission" means the Drinking Water and Sanitation Service Tariff Fixation Commission pursuant to Section 28.
 - (d) "Project" means a project operated for the purpose of constructing, expanding, or improving physical infrastructure and carrying out other related works to provide drinking water and sanitation services.
 - (e) "Consumer" means a person, institution, or body using drinking water and sanitation services.
 - (f) "Consumer Institution" means a community institution operating drinking water and sanitation services.
 - (g) "Drinking Water Service" means the act of supplying drinking water for domestic, public, institutional, or industrial use by storing, transferring, treating, and distributing water according to prescribed standards, and said term also denotes the act of providing drinking water in bulk, by tanker, or in bottled form.
 - (h) "Public Use of Drinking Water" means the use of drinking water distributed to consumers from publicly installed taps, and said term also denotes the use of drinking water used in public places during emergencies including fire control.
 - (i) "Institutional Use of Drinking Water" means the use of drinking water by government, public, commercial, or business institutions, and said term also denotes drinking water used by industrial institutions for purposes other than industrial purposes.
 - (j) "Drinking Water" means quality clean drinking water that does not contain elements harmful to human and animal health and conforms to the National Drinking Water Quality Standards.
 - (k) "Domestic Use" means the use of drinking water for drinking, washing hands, face, and clothes, bathing, cooking, feeding animals and birds, kitchen gardening, toilets, or other similar personal and household purposes.
 - (l) "Drainage" means the act of collecting and transferring wastewater, with or without human excreta,

through an underground or surface sewer system or any other safe method.

(m) "Prescribed" or "as prescribed" means prescribed or as prescribed in this Act or the rules made under this Act.

(n) "Inspector" means an employee designated by the Ministry to work as an Inspector pursuant to Section 39.

(o) "Water Source" means surface or underground water sources such as rivers, streams, lakes, ponds, stone spouts, wells, and springs from which water naturally emerges, and said term also denotes rainwater and man-made structures supplying water.

(p) "Wastewater" means wastewater, with or without human excreta, discharged after domestic and institutional use of drinking water, and said term also denotes rainwater mixed with wastewater.

(q) "Ministry" means the Ministry of the Government of Nepal responsible for drinking water matters.

(r) "Sanitation Service" means the act of maintaining environmental cleanliness by managing wastewater and providing drainage, and said term also denotes the act of constructing, developing, operating, and promoting sewerage systems, wastewater treatment systems, and public toilets to protect water sources.

(s) "Organized Institution" means a consumer institution, company, or cooperative institution registered and established pursuant to prevailing law for operating drinking water and sanitation services, and said term also denotes a corporation, board, committee, authority, or body of a similar nature formed and established with the objective of providing drinking water and sanitation services pursuant to prevailing law.

(t) "Service System" means a drinking water source, pipes, treatment mechanisms, water storage structures, reservoirs, or structures related to sanitation services, or other similar equipment or structures, and said term also denotes the house, land, and structures built thereon connected to the drinking water and service.

(u) "Service Provider" means a licensee institution providing drinking water and sanitation services through the construction, operation, and management of drinking water services, sanitation services, or service systems.

(v) "Service Area" means the area prescribed and mentioned in the license for the licensee institution to operate and manage drinking water and sanitation services.

(w) "Local Level" means a Rural Municipality or Municipality.

Chapter-2

Relating to the Right to Drinking Water and Sanitation and Sources

3. Right to Drinking Water and Sanitation: (1) Every citizen shall have the right of access to clean drinking water and sanitation, and the respect, protection, promotion, and fulfillment of such right shall be as per this Act and prevailing law.

(2) Under the right of access to drinking water and sanitation pursuant to sub-section (1), every citizen shall have the following rights:-

(a) The right to easy and accessible access to clean drinking water,

(b) The right to receive sufficient, clean, and quality drinking water regularly,

(c) The right to easy and accessible access to quality sanitation services.

(3) The responsibility to respect, protect, promote, fulfill, and implement the right pursuant to sub-section (1) shall be of the Government of Nepal, Provincial Government, and Local Level in mutual coordination. 4. Right to Water Source: (1) The Government of Nepal shall have the right over water sources, subject to this Act and prevailing law.

(2) Any person or community shall have priority rights over drinking water they have traditionally been using for domestic purposes, for the same purpose.

(3) The right of any person, settlement, community, or social institutions such as schools, hospitals, monasteries, religious sites to receive drinking water services from a drinking water system shall remain protected for such person, settlement, community, or social institutions such as schools, hospitals, monasteries, religious sites until alternative arrangements are made for the drinking water services available from that system. 5. Protection of Water Source and Spring: (1) The protection of water sources and springs shall be carried out in coordination among the Government of Nepal, Provincial Government, and Local Level.

(2) For the protection of drinking water sources and springs, the following acts shall be performed:-

(a) Controlling floods and landslides for the protection of water sources,

(b) Making necessary arrangements to prevent pollution of water sources and to protect water sources from destruction or extinction,

(c) Adopting appropriate measures and carrying out regular maintenance to make the water spring or source sustainable,

(d) Conducting awareness or interaction programs for consumers or concerned parties regarding the conservation, promotion, and proper use of water,

(e) Encouraging farmers to undertake organic farming to prevent water source pollution and to protect the water spring or watershed area,

(f) Banning the use of pesticides or explosive materials in a manner that adversely affects the water spring or watershed area or the animals therein, and

(g) Performing other tasks related to the protection of drinking water sources and springs. 6.

Duty of Citizens: It shall be the duty of every citizen to keep water springs or sources clean, to protect and promote them, and to use them sustainably. 7. Operation and Management of Drinking Water and Sanitation Services: (1) The Government of Nepal, Provincial Government, and Local Level shall operate and manage clean and quality drinking water and sanitation services. (2) While operating and managing services pursuant to sub-section (1), the Government of Nepal, Provincial Government, and Local Level may do so themselves or cause it to be done through organized institutions. (3) Notwithstanding anything contained in sub-section (2), the operation and management of basic drinking water and sanitation services shall be carried out or caused to be carried out by the Government of Nepal, Provincial Government, and Local Level themselves in mutual coordination, or through an organized institution under their ownership or control. (4) A licensee institution shall regularly provide drinking water services in the prescribed quantity from the drinking water system within the drinking water area specified in the license. (5) If a licensee institution is unable to regularly distribute drinking water as per sub-section (4), it shall provide consumers with drinking water of appropriate quality and quantity via tanker or other alternative arrangements. (6) If a licensee institution fails to distribute drinking water regularly according to the schedule provided by it within its service area, it shall not be entitled to collect charges or tariffs for the period during which drinking water distribution was not possible. Chapter-3 Responsibility and Liability for Drinking Water and Sanitation 8.

Responsibility and Liability for Drinking Water and Sanitation: (1) The responsibility and liability for granting licenses for, constructing, operating, and managing drinking water services, sanitation services, and projects shall be of the Government of Nepal, Provincial Government, and Local Level. (2) The responsibility and liability of the Government of Nepal, Provincial Government, and Local Level for the tasks pursuant to sub-section (1) shall be as follows:- (a) Responsibility and liability of the Government of Nepal:- (1) Large and complex projects of a national nature as prescribed related to drinking water and sanitation services, (2) Projects to be built with co-investment and those with foreign aid, (3) Projects providing drinking water and sanitation services to an area as prescribed, with a cost estimate as prescribed, or to a population as prescribed, (4) Projects concerning more than one province, (5) Multi-purpose wastewater treatment and management works requiring large investment as prescribed, (6) Projects transferring water from natural resources of one watershed area to another watershed area, (7) Projects as specified by the Government of Nepal, (8) Monitoring drinking water and sanitation projects. (b) Responsibility and liability of the Provincial Government:- (1) Projects providing drinking water and sanitation services to an area as prescribed, with a cost estimate as prescribed, or to a population as prescribed, (2) Regarding wastewater management and treatment, (3) Projects affecting more than one Local Level within the Province. (c) Responsibility and liability of the Local Level:- (1) Basic drinking water and sanitation services at the local level, (2) Raising public awareness regarding sanitation, (3) Operation of wastewater management systems, (4) Projects providing drinking water services to an area as prescribed, with a cost estimate as prescribed, or to a population as prescribed, (5) Maintenance and rehabilitation of drinking water and sanitation projects operated by the Local Level. (3) The implementation of matters for which responsibility and liability rests pursuant to clauses (b) and (c) of sub-section (2) shall be as per the laws of the relevant Province and Local Level. (4) Notwithstanding anything contained in sub-section (3), until provincial and local laws are made, the Government of Nepal may work pursuant to this Act. (5) Notwithstanding anything contained in this Section, if a Local Level is unable to complete a project for essential drinking water and sanitation due to higher costs, requirement of specialized technical expertise, geographical complexity, or manpower constraints, it may request the Provincial Government for project implementation, and the Provincial Government may request the Government of Nepal. (6) Projects requested by the Local Level pursuant to sub-section (5) shall be implemented by the Provincial Government, and projects requested by the Provincial Government shall be implemented by the Government of Nepal. (7) The authority to regulate drinking water and sanitation within their respective areas shall vest in the Government of Nepal, Provincial Government, and Local Level as mentioned in sub-section (2).

Chapter-4

Provisions Relating to License

9. License Required: (1) Anyone wishing to provide drinking water and sanitation services, survey, construct, operate, and manage projects or service systems, and use or cause to be used water sources for public, institutional, and commercial purposes shall obtain a license under this Act.

(2) Notwithstanding anything contained in sub-section (1), a license shall not be required to do the following works:-

- (a) To survey, construct, operate, and manage small projects as prescribed based on technology, investment, and number of consumers, and to provide drinking water and sanitation services by institutions as prescribed,
- (b) To absorb wastewater from one's own house premises underground (absorb) or discharge it onto one's own land by any method without causing adverse effects to others,
- (c) For non-profit community institutions or consumer groups registered under laws prevailing before the

commencement of this Act and currently engaged in drinking water conservation, promotion activities, and operation of drinking water and sanitation services, to continue such activities and services,

(d) To use drinking water sources located on one's own private land for domestic use.

(3) Notwithstanding anything contained in sub-section (2), non-profit community institutions or consumer groups registered under laws prevailing before the commencement of this Act and currently engaged in drinking water conservation, promotion, and operation of drinking water and sanitation services shall register with the relevant Local Level within one year of the commencement of this Act. 10. Application for License:

(1) An organized institution wishing to provide drinking water and sanitation services, survey, construct, operate, and manage projects or service systems, or use water sources for public, institutional, commercial, and industrial purposes under this Act shall submit an application for a license to the prescribed authority in the prescribed format.

Explanation: For the purposes of this Chapter, "prescribed authority" means, in the case of the Government of Nepal, the authority designated by the Ministry of Drinking Water; in the case of the Provincial Government, the authority designated by the Ministry of the Provincial Government responsible for drinking water matters; and in the case of the Local Level, the authority designated by the Local Level.

(2) While submitting an application pursuant to sub-section (1), an economic, technical, and environmental study report as per prevailing law, along with other prescribed details, shall be attached.

(3) If, during the necessary inquiry into the application received pursuant to sub-section (1), additional documents are required or any matter needs further clarification, the prescribed authority shall give the applicant seven days' time to submit such documents or provide clarification.

(4) If the applicant submits additional documents or provides clarification within the time given pursuant to sub-section (3), the date of such submission or clarification shall be deemed the date of the application. 11.

License to be Granted: (1) If, after necessary investigation of the application filed pursuant to Section 10, it appears appropriate to grant permission under this Act, the prescribed authority shall, within the following periods, mention the necessary conditions and grant a license in the prescribed format:-

(a) In the case of projects with small capital or cost, within thirty days from the date of application,

(b) In the case of projects with large capital and cost, generally within ninety days from the date of application.

(2) Organized institutions that were providing drinking water and sanitation services, constructing, operating, and managing projects or service systems, and using water sources for public, institutional, commercial, and industrial purposes before the commencement of this Act shall obtain a license as prescribed within one year from the date of commencement of this Act.

(3) Organized institutions that do not obtain a license pursuant to sub-section (2) shall not be allowed to provide drinking water and sanitation services, construct, operate, and manage projects or service systems, or use water sources for public, institutional, commercial, and industrial purposes. 12. Provisions Relating to Survey License: (1) An organized institution wishing to survey drinking water and sanitation services, projects, or service systems shall submit an application for a license to the prescribed authority as prescribed.

(2) The duration of a license granted for survey pursuant to sub-section (1) shall be a maximum of three years.

(3) If the survey work is not completed within the period pursuant to sub-section (2), such license shall be

automatically canceled.

(4) The format, fee, procedure for application for a survey license, survey license fee, and other arrangements shall be as prescribed. 13.

Duration of License: (1) The duration of a license granted under Section 11 for providing drinking water and sanitation services, constructing, operating, and managing projects or service systems, or using water sources for public, institutional, commercial, and industrial purposes shall be a maximum of twenty-five years. (2) Notwithstanding anything contained in sub-section (1), in the case of service providers providing drinking water services in bulk, by tanker, or in bottled form, the duration of the license shall be two years. (3) A licensee institution under Section 11 may submit an application for renewal in the prescribed format along with the prescribed fee, at least three months before the expiry of the license period. (4) If an application for renewal is submitted pursuant to sub-section (3), such licensee institution shall be granted renewal of the license for a period not exceeding five years at a time. (5) The license of a licensee institution that does not get it renewed pursuant to sub-section (4) shall be automatically revoked. (6) If a licensee institution had been granted a license for a period shorter than the period specified in sub-section (1) before the commencement of this Act, such licensee institution may submit an application as prescribed for extension of the license period at least thirty days before the expiry of the period specified in the license. (7) If any application is received pursuant to sub-section (6), the prescribed authority shall, after necessary investigation of the application and considering the project's progress, subject to sub-section (1), extend the license period for terms not exceeding five years each. 14. License Not to be Granted: (1) If a license has been granted to an organized institution under this Act for providing drinking water and sanitation services in a service area, constructing, operating, and managing projects or service systems, or using water sources for public, institutional, commercial, and industrial purposes, no license shall be granted to any other organized institution during the period of such license in a manner that adversely affects the water source for which the license was obtained in the same area. (2) Notwithstanding anything contained in sub-section (1), a license may be granted to other organized institutions under the following circumstances:- (a) If quality services are not provided in the service area, (b) If drinking water is not distributed regularly, (c) If drinking water supply cannot be met as per demand, or (d) If the license is canceled under Section 15. 15.

Cancellation of License: (1) Under the following circumstances, the prescribed authority may order the relevant licensee institution to make necessary improvements to the work mentioned in the license or to complete the construction work and commence service:- (a) If any work is done contrary to this Act or the rules made under this Act, (b) If drinking water and sanitation services are not provided regularly, (c) If charges higher than prescribed are taken for providing drinking water and sanitation services, or (d) If the project or service system is not constructed, operated, and managed within the period mentioned in the license. (2) If an order given pursuant to sub-section (1) is not complied with, or if the conditions specified in the license are violated, the prescribed authority shall cancel the license granted under Section 11. (3) Before canceling the license pursuant to sub-section (2), the prescribed authority shall give the relevant licensee institution a reasonable opportunity to present its defense. 16. Details to be Submitted: The Local Level shall submit the following details to the Ministry through the Province, and the Province shall submit them to the Ministry:- (a) Names and numbers of organized institutions to which licenses have been granted, (b) Service areas of organized institutions to which licenses have been granted, (c) License duration and prescribed conditions for organized institutions to which licenses have been granted, (d) Number of projects operated by the Province or Local Level themselves and other necessary details, (e) Other details deemed appropriate by the Province and Local Level. 17. Transfer of Structures: (1) After the expiry of the license period pursuant to

sub-section (1) of Section 13, the licensee institution shall transfer the drinking water service, sanitation service, project, and service system operated by it and related structures in a functional state, free of cost, to the following bodies:- (a) In the case of projects under sub-section (2) of Section 8, the Government of Nepal or a body designated by the Government of Nepal, (b) In the case of projects under sub-section (4) of Section 8, the Provincial Government or a body designated by the Provincial Government, (c) In the case of projects under sub-section (5) of Section 8, the relevant Local Level. (2) Other provisions relating to the transfer of structures pursuant to sub-section (1) shall be as prescribed. (3) The bodies under clauses (a), (b), and (c) shall submit details as prescribed of the projects and structures transferred by the licensee institution pursuant to sub-section (1) to the Ministry within three months from the date of transfer to that body.

Chapter-5 Relating to Operation of Drinking Water and Sanitation Services 18.

Service to be Provided: (1) A licensee institution or a consumer institution not required to obtain a license under this Act shall make necessary arrangements so that drinking water and sanitation services can be used equitably within its service area. (2) While providing drinking water services to public, institutional, and commercial consumers, a licensee institution may provide services by entering into a mutual agreement with such public, institutional, and commercial entities regarding the quantitative use of water and the management of wastewater generated after water use. (3) While providing drinking water and sanitation services within its service area pursuant to sub-section (1), discrimination on any grounds shall not be allowed. (4) While providing services under this Section, water sources shall be used for public, institutional, commercial, and industrial purposes only after making proper arrangements for domestic use. 19. Operation of Drinking Water and Sanitation Services via Contract: (1) The Government of Nepal may give any drinking water service, sanitation service, project, or service system constructed or operated by or under the ownership of the Government of Nepal to an organized institution for operation and management on a contract basis. (2) Other provisions relating to handing over the operation and management of drinking water services, sanitation services, projects, or service systems on a contract basis shall be as prescribed. 20. Quality Water to be Supplied: A licensee institution or a consumer institution not required to obtain a license under this Act shall supply clean and quality drinking water. 21. Tap and Meter Connection: (1) A consumer wishing to obtain drinking water services under this Act shall submit an application as prescribed to the licensee institution of the relevant service area for tap and meter connection. (2) Upon receipt of an application pursuant to sub-section (1), the licensee institution shall collect the prescribed fee and provide the tap and meter connection within the prescribed time. (3) Notwithstanding anything contained in sub-sections (1) and (2), if it is not feasible to install meters on taps within a service area due to technical reasons, drinking water services shall be provided through other appropriate arrangements. 22. Obtaining Drainage Service: (1) A consumer wishing to obtain drainage service under this Act shall submit an application as prescribed to the licensee institution of the relevant service area. (2) Upon receipt of an application pursuant to sub-section (1), the licensee institution shall collect the prescribed fee for drainage and make drainage arrangements within the prescribed time limit. 23.

Allowed to Buy and Sell: Licensee institutions under this Act may, by mutual agreement, buy and sell treated, semi-treated, or untreated water in bulk for domestic, public, institutional, commercial, and industrial purposes. 24. Service May be Discontinued: (1) If, due to force majeure circumstances, the quality of drinking water being provided from the service system cannot be maintained, or the level of service is affected, or the service needs to be discontinued, the licensee institution may discontinue the service by giving prior notice to consumers through appropriate means, mentioning the estimated time required for restoring such service. (2) If a licensee institution discontinues drinking water services within its service area pursuant to sub-section (1), such licensee institution shall make alternative arrangements and provide consumers with clean and quality

drinking water. (3) If, due to force majeure circumstances, the wastewater being discharged from the drainage system cannot be managed, the licensee institution shall publish a public notice mentioning the estimated time required for restoring such service and manage such wastewater appropriately as soon as possible. (4) Until the wastewater is managed pursuant to sub-section (3), alternative arrangements shall be made for its management. (5) If a licensee institution fails to distribute drinking water regularly within its service area according to the schedule provided by it pursuant to sub-section (1), it shall not be entitled to collect charges or fees for the period during which drinking water distribution was not possible, and for the period during which wastewater being discharged from the drainage system could not be managed pursuant to sub-section (3). (6) The service of a consumer who fails to pay the prescribed tariff within the stipulated time, misuses the service, or violates the conditions to be followed while using the service may be discontinued by the licensee institution after giving prior notice. (7) If a consumer whose service has been discontinued pursuant to sub-section (6) submits an application for restoration of service after paying the dues, the licensee institution shall collect the prescribed fee and restore the discontinued service, and if any loss or damage has occurred due to the consumer's fault, such amount of loss or damage may be recovered from the relevant consumer. 25.

Laying Pipes or Constructing Other Structures on Private or Public Land: (1) For the purpose of providing services to consumers, a licensee institution may, after completing the process as per prevailing law, lay drinking water and drainage pipes or construct other structures on private or public land. (2) If a licensee institution needs to lay pipes or construct structures on any person's private land, it may purchase such land or take it on lease by entering into a written agreement with the relevant landowner. (3) If private land cannot be acquired pursuant to sub-section (2), or if it is not possible to acquire the land, the licensee institution may request the relevant body or authority to acquire such land as per prevailing law. (4) If anyone's private property is damaged or lost due to pipes laid or structures constructed by a licensee institution for the construction and operation of drinking water services, sanitation services, projects, or service systems, such licensee institution shall provide appropriate compensation for the same. 26. **Entry into Premises:** (1) If a licensee institution or any employee deployed in connection with work under this Act needs to enter any person's premises, it/he/she may enter such premises after giving prior notice to the relevant person. (2) Notwithstanding anything contained in sub-section (1), if there are sufficient grounds and reasons to suspect that a person is misusing or unauthorizedly using the service, an authorized employee of the licensee institution may, after completing the procedure under prevailing law, enter such person's premises without prior notice during the time between sunrise and sunset. (3) An employee entering premises pursuant to sub-sections (1) and (2) shall not cause any damage or loss to any property of the relevant premises owner. (4) If an employee entering premises pursuant to sub-sections (1) and (2) is found to have caused damage or loss to any property of the premises owner, the relevant licensee institution shall provide compensation to such premises owner as prescribed. 27. **Security of Structures Related to Service System:** (1) For the security of a project or service system, upon the written request of the licensee institution or if it is necessary to protect such system, the Government of Nepal, Provincial Government, and Local Level shall make necessary security arrangements. (2) If security arrangements are made at the request of the licensee institution pursuant to sub-section (1), the entire cost thereof shall be borne by the same licensee institution. Chapter-6 Relating to Tariff and Service Charges 28.

Formation of Tariff Fixation Commission: (1) A Drinking Water and Sanitation Service Tariff Fixation Commission shall be established to fix the tariff payable by consumers receiving drinking water and sanitation services for such services. (2) The Commission pursuant to sub-section (1) shall consist of the following Chairperson and Members:- (a) A person appointed by the Government of Nepal from among individuals who

have obtained at least a master's degree in Engineering, Management, Economics, or Financial Management from a recognized educational institution and have at least ten years of experience holding managerial responsibilities in relevant public institutions - Chairperson (b) One person appointed by the Government of Nepal from among individuals who have obtained at least a bachelor's degree in Economics, Financial Management, Chartered Accountancy, or Commerce from a recognized educational institution and have at least seven years of experience in the relevant field - Member (c) One person appointed by the Government of Nepal from among individuals who have obtained at least a bachelor's degree in Engineering, Sociology, or Law from a recognized educational institution and have at least seven years of experience in the relevant field - Member (3) While appointing the Chairperson and Members pursuant to sub-section (2), at least one woman shall be included. (4) The term of office of the Chairperson and Members pursuant to sub-section (2) shall be four years, and they may be reappointed for one additional term. (5) Notwithstanding anything contained in sub-section (4), if the Chairperson or a Member exhibits misconduct, their work is unsatisfactory, they fail to fulfill their duties honestly as per the position, or act against the interests of the Commission, the Government of Nepal may remove them at any time. Provided that, before removal, they shall be given a reasonable opportunity to present their defense. 29. Disqualification of Chairperson and Members: The following persons shall not be eligible for appointment or to remain in the office of Chairperson or Member:- (a) Non-Nepali citizen, (b) Employed in a licensee institution or any institution related to a licensee institution, or having investment in such institution, or having any kind of interest therein, (c) Lacking the qualification as per sub-section (2) of Section 28, (d) Convicted of an offense relating to corruption, rape, human trafficking and transportation, narcotic drug sale, distribution or export/import, money laundering, wildlife trafficking, organized crime, passport misuse, kidnapping, or a criminal offense involving moral turpitude, or convicted of any other criminal offense and sentenced to imprisonment for three years or more, and such judgment has become final, (e) Holding a permanent resident permit of a foreign country, or (f) Having reached the age of sixty-five years. 30.

Meeting of the Commission: (1) A meeting of the Commission shall be held at least twice a year on a date, time, and place fixed by the Chairperson. (2) Notwithstanding anything contained in sub-section (1), the interval between two meetings shall not exceed six months. (3) The meeting of the Commission shall be presided over by the Chairperson. (4) Other procedures relating to the conduct of the Commission's meetings shall be as determined by the Commission itself. 31. Staff and Budget of the Commission: (1) Staff required for the Commission shall be provided by the Government of Nepal. (2) The budget required for the administrative expenses and other business of the Commission shall be provided by the Government of Nepal. 32. Basis for Tariff Fixation: (1) The Commission shall fix the tariff for drinking water and sanitation services based on the cost of service operation, changes in the consumer price index, the policy of the Government of Nepal regarding drinking water and sanitation services, foreign exchange rates, and depreciation. (2) While fixing the tariff based on sub-section (1), the Commission shall consider the greater interest of consumers, water quality, consumer purchasing power, and the level of service. (3) Other provisions relating to tariff fixation shall be as prescribed. 33. Right to Collect Tariff, Charges, or Fees: (1) A drinking water and sanitation project operated and managed by the Government of Nepal itself or through an organized institution, or under its control or ownership, shall have the right to collect tariffs and service charges as determined by the Commission from consumers for the use of drinking water and sanitation services. (2) A licensee institution shall have the right to collect tariffs and service charges from consumers for the use of drinking water and sanitation services, subject to the basis and standards determined by the Commission. (3) The tariff and service charges for the use of drinking water and sanitation services shall be paid by the relevant consumer to the licensee institution. (4) Notwithstanding anything contained in

sub-section (1), (2), or (3), a licensee institution may provide concessions to indigent persons and families regarding prescribed services, including charges for tap connection, toilet construction, sewer connection, and tariffs as prescribed. Explanation: For the purposes of this Section, "indigent person and family" means a person and family whose income is less than that specified by the Government of Nepal by publishing a notice in the Nepal Gazette. 34. Recovery: If a consumer fails to pay the tariff or penalty amount for the use of drinking water and sanitation services under this Act, the licensee institution may recover such amount from such consumer pursuant to prevailing law. 35.

Remission Allowed: The Government of Nepal, by publishing a notice in the Nepal Gazette, the Provincial Government, by publishing a notice in the Provincial Gazette, and the Local Level, by publishing a notice in the Local Gazette, may reduce or remit the tariff applicable to drinking water taps installed for consumers in a specific area who are unable to pay the drinking water tariff due to exceptional circumstances, or for indigent and marginalized communities. Explanation: For the purposes of this Section, "exceptional circumstances" means a situation where drinking water services are not operating or are operating to a limited extent due to any disaster. Chapter-7 Relating to Quality and Standards 36. Quality and Standards May be Prescribed: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, prescribe the quality and standards for drinking water and standards related to sanitation services. (2) Subject to the standards pursuant to sub-section (1), and ensuring they are not lower than the quality specified by those standards, the Provincial Government and Local Level may prescribe necessary standards for drinking water and sanitation for their respective areas. (3) The Government of Nepal may, by publishing a notice in the Nepal Gazette, prescribe a specific method or technique to maintain the quality of drinking water for a specific situation. (4) The quality and standards prescribed pursuant to sub-section (1) shall be reviewed at least every five years. (5) It shall be the duty of all concerned to comply with the quality and standards prescribed by the Government of Nepal under this Section. 37. Wastewater Not to be Mixed: (1) No one shall discharge wastewater, with or without human excreta, into the drainage system contrary to the prescribed standards, or cause human excreta to be mixed directly or sent into rivers, streams, lakes, ponds, reservoirs, human settlements, or public land. (2) If anyone needs to discharge wastewater generated from their premises into the drainage system, they must treat it and discharge it remaining within the limits of the standards prescribed pursuant to prevailing law. 38. Establishment and Operation of Laboratory: (1) The Government of Nepal shall establish and operate laboratories for measuring and testing the quality of drinking water and wastewater. (2) Provisions regarding the establishment and operation of laboratories pursuant to sub-section (1) shall be as prescribed. Chapter-8 Relating to Monitoring and Supervision of Service 39.

Inspector to be Designated: For the implementation, monitoring, and supervision of the prescribed quality and standards related to drinking water and sanitation, the Ministry may designate an employee possessing expertise in the relevant subject as an Inspector. 40. Supervision to be Conducted: Based on the collection of samples of drinking water provided by the licensee institution and their testing and analysis, the Inspector shall regularly supervise whether the quality of drinking water and the standards of discharged wastewater are maintained. Explanation: For the purposes of this Section, "supervision" means the act of regularly collecting and analyzing samples and necessary information regarding the use of the service and its quality, considering the impact or effect on public health due to a decline in quality during the provision of drinking water and sanitation services, and providing suggestions for improvement based on the results obtained. 41. Monitoring and Regulation: (1) The Inspector shall regularly monitor the quality of drinking water supplied by the licensee institution and the level of sanitation services provided. (2) While monitoring pursuant to sub-section (1), the Inspector may collect and test samples of drinking water supplied or wastewater discharged by the licensee institution, or take or demand other necessary details. (3) During monitoring

(d) Secretary, Ministry - Member

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(e) Seven persons nominated by the Government of Nepal on the basis of inclusive principle, including at least three women, from among the heads or deputy heads of local levels ensuring representation from each province - Member

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(f) Three persons nominated by the Government of Nepal, including at least one woman, from among persons who have obtained a bachelor's degree in the relevant subject and have ten years of experience in the drinking water and sanitation sector - Member

(?) ?????????, ????????????? - ??????-???? ? (g) Joint Secretary, Ministry - Member-Secretary.

(?) ?????? (?) ?????????? ?????????? ?????????? ?????? ?????????? ?????????? ?? ??? ?????????? ? (2) The meeting of the Coordination Committee pursuant to sub-section (1) shall be held at least once a year.

(?) ?????????? ?????????? ?????????? ?????????? ?????? ?????????????????? ?????????? ?????????? ?????? ?????????? ? (3) The Coordination Committee may invite any expert to the meeting as required.

(?) ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ?????? ?????????? ?????? ? (4) The procedure relating to the meeting of the Coordination Committee shall be as determined by the Committee itself.

(?) ?????????? ?????????? ?????????? ?????? ?????????? ?????????? ?????? ??? ?????????? ?????????? ? ?????????????????????? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????? ??? ?????????? ?????? ?????????? ? (5) The Coordination Committee may solicit opinions and suggestions from the Consumer Association concerned with drinking water and sanitation services on matters of formulation and implementation of policies and plans relating to drinking water and sanitation.

(?) ?????????? ?????????? ?????? ?????????? ? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ? (6) Other provisions relating to the functions, duties and powers of the Coordination Committee shall be as prescribed.

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Integrated electronic map to be prepared: (1) The Government of Nepal shall prepare, within the prescribed time period, an integrated map with electronic records, clearly showing water sources, quantity, quality, benefited areas and all components of the drinking water and sanitation system.

(?) ?????? (?) ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????, ?????????? ?????????? ? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ? (2) The integrated electronic map pursuant to sub-section (1) shall have updated details of projects to be completed by the Government of Nepal, provincial government and local levels.

(?) ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ? (3) Other provisions relating to integrated electronic records and integrated maps shall be as prescribed.

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Power to frame rules: (1) The Government of Nepal may frame necessary rules for the implementation of this Act.

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(2) Without prejudice to the generality of the power conferred by sub-section (1), rules may be made on the following matters:-

(?) ?????????? ??? ?????????? ?????????? ?????????? ??? ??????????????,

(a) Operation and management of drinking water and sanitation services,

(?) ?????????? ??? ?????????????? ?????????????? ?????? ?????????????,

(b) Relating to distribution of clean and quality drinking water,

(?) ?????????? ??? ?????????? ?????????? ?????????????? ??? ?????????????? ?????????????? ?????????, ?????????? ?????? ?????????????,

(c) Relating to license fee for drinking water and sanitation services and survey license fee, renewal fee,

(?) ?????????????? ??? ?????????? ?????????? ?????? ?????????????,

(d) Determination of tariff for drinking water and sanitation services,

(?) ?????? ??? ?????? ?????? ?????????????,

(e) Relating to tap and meter connection,

(?) ?? ?????????? ?????? ?????????????,

(f) Relating to sewer service charge,

(?) ?????????? ??? ?????? ??? ?????????? ?????????????,

(g) Relating to wholesale purchase and sale of water,

(?) ?????????? ??????? ??? ???????,

(h) Quality and standards of drinking water,

(?) ?????????????? ??????? ??? ??????? ?????????,

(i) Relating to establishment and operation of laboratory,

(?) ?????????? ??????? ??? ??????? ?????????,

(j) Relating to export and trade of drinking water,

(?) ??????? ??????? ??? ??????? ? ??????? ?????????,

(k) Relating to functions, duties and powers of the Coordination Committee,

(?) ?????????? ??? ??????? ??????? ??????? ??? ??????, ?

(l) Monitoring and regulation of drinking water and sanitation services, and

(?) ?? ?????????????? ????? ??????? ?????? ?????? ????????? ? (m) Other subjects necessary for the implementation of this Act.

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(1) The Drinking Water Tariff Determination Commission Act, 2063 is repealed.

(?) ?????????? ??????? ?????????? ????? ??, ????? ??????? ?? ?????? ??? ?????????? ??? ?? ??????? ?? ?????? ????????? ? (2) All acts and proceedings done under the Drinking Water Tariff Determination Commission Act, 2063 shall be deemed to have been done under this Act.

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(?) ?? ?? ??????????